

Legal Causation (1)

Legal causation v factual causation

- ❑ Factual causation was about whether D has caused C's damage at all
- ❑ Legal causation: even if D is a cause of C's harm does that causal relationship justify requiring D to give C a remedy?
 - Factual causation must already be proven
 - Which cause the law settles on as being responsible in law is a 'moral' choice

Topics in legal causation

1. Remoteness of damage
2. New intervening acts
3. Supervening events
4. 'The scope of duty' principle
5. Coincidental harms



1. Remoteness of Damage

The history of remoteness

***Re Polemis* [1921] 3 KB 560**

“[I]f the act would or might probably cause damage, the fact that the damage it in fact causes is not the exact kind of damage one would expect is immaterial, so long as the damage is in fact directly traceable to the negligent act, and not due to the operation of independent causes ... Once the act is negligent, the fact that its exact operation was not foreseen is immaterial.” (Scrutton LJ, [577])

The Wagon Mound (No 1) [1961] AC 388



Facts:

- ❑ D allowed oil to spill into Sydney Harbour while refueling.
- ❑ Damage caused by fire *not* reasonably foreseeable because difficult to ignite a thin film of oil on water

Lower Courts:

- ❑ Damage not reasonably foreseeable, but D still liable – under rule in *Re Polemis*.

House of Lords:

- ❑ If damage was not of a reasonably foreseeable kind, then D not liable – *Re Polemis* overruled.

The Wagon Mound (No 1) [1961] AC 388



- “it does not seem consonant with current ideas of justice or morality that for an act of negligence, however slight or venial, which results in some trivial foreseeable damage the actor should be liable for all consequences however unforeseeable and however grave, so long as they can be said to be ‘direct.’” (Viscount Simonds, p.421)
- “the essential factor in determining liability is whether the damage is of such a kind as the reasonable man should have foreseen. This accords with the general view thus stated by Lord Atkin in *Donoghue*” (Viscount Simonds, p.426)

Hughes v Lord Advocate [1963] AC 837



Facts:

- ❑ D left a manhole open during roadworks.
- ❑ At night paraffin lamps put around it to warn passers-by.
- ❑ C, an 8 y.o., accidentally kicked lamp into the hole, causing an explosion that injured C.

Hughes v Lord Advocate [1963] AC 837



“[C’s] injuries were mainly caused by burns, and it cannot be said that injuries from burns were unforeseeable. ... No doubt it was not to be expected that the injuries would be as serious as those which the appellant in fact sustained. But [D] is liable, although the damage may be a good deal greater in extent than was foreseeable. He can only escape liability if the damage can be regarded as differing in kind from what was foreseeable.”

(Lord Reid, p.845)

Hughes v Lord Advocate [1963] AC 837



Held:

- ☐ D liable.
- ☐ Even though an explosion was not reasonably foreseeable, some type of burn was reasonably foreseeable.
- ☐ “To my mind, the distinction drawn between burning and explosion is too fine to warrant acceptance.” (Lord Jenkins, p.850)

Jolley v Sutton LBC [2000] 1 WLR 1082



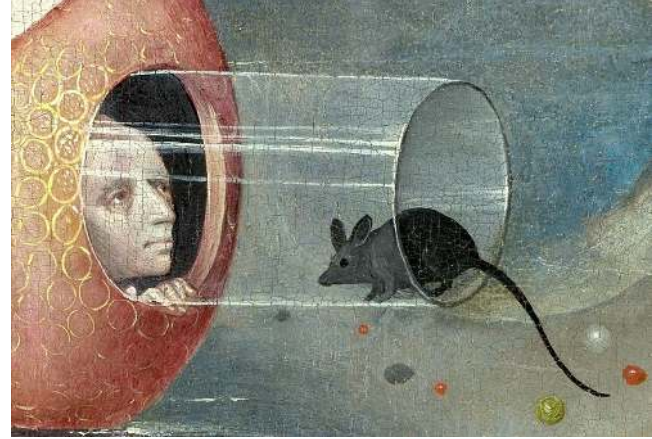
Facts:

- ❑ 14-year old boy injured while playing with a disused boat
- ❑ He crawled underneath the boat which was propped up

Held:

- ❑ Some danger from meddling with the boat was reasonably foreseeable even if the the specific danger of the boat falling was not reasonably foreseeable
- ❑ D liable

Tremain v Pike [1969] 1 WLR 1556



Facts:

- ❑ D negligently allowed his farm to become infested with rats
- ❑ C farm worker contracted Weil's disease as a result of exposure to rat urine

Held:

- ❑ Danger from a rat biting was reasonably foreseeable, but danger from rat urine was not. D not liable.

The eggshell skull rule



Smith v Leech Brain & Co Ltd [1962] 2 QB 405

- ❑ C was burnt on the lip because of D's negligence.
- ❑ C had a pre-cancerous skin condition, which became cancerous as a result of the burn, and C eventually died.
- ❑ D held liable for the full consequences of his negligence – D 'takes the claimant as they find them'.

The eggshell skull rule



Distinction between type of harm and quantity of harm:

- ❑ D's liability for type of harm limited by what is reasonably foreseeable
- ❑ D's liability for quantity of harm not limited by what is reasonably foreseeable

Once established that the kind of damage is reasonably foreseeable, D is liable for the full extent damage



2. New Intervening Acts

'DIVU'

An intervening act by C or TP will be more likely to break the chain of causation if it is:

- ☐ Deliberate
- ☐ Informed
- ☐ Voluntary
- ☐ Unreasonable

'DIVU'

“...where the line is to be drawn is not capable of precise definition. Various considerations may, however, commonly be relevant. In a case involving intervening conduct, these may include:

1. The extent to which the conduct was reasonably **foreseeable** — in general, the more foreseeable it is, the less likely it is to be a *novus actus interveniens*.
2. The degree of **unreasonableness** of the conduct— in general, the more unreasonable the conduct, the more likely it is to be a *novus actus interveniens* and a number of cases have stressed the need for a high degree of unreasonableness.
3. The extent to which it was **voluntary and independent conduct**— in general, the more deliberate the act, the more informed it is and the greater the free choice involved, the more likely it is to be a *novus actus interveniens*.”

(Hamblen LJ in *Clay v TUI*)

2(a): acts of C



McKew v Holland [1969] 3 ALL ER 1621

Facts:

- ❑ C suffered an injury caused by D's negligence. As a result his leg occasionally gave way under him.
- ❑ C descended a steep staircase with no hand rail.
- ❑ C's leg gave way and to avoid falling, he threw himself forwards, fracturing his ankle.

2(a): acts of C



McKew v Holland [1969] 3 ALL ER 1621

Held:

- ❑ D not liable.
- ❑ “...if the injured man acts unreasonably he cannot hold [D] liable for injury caused by his own unreasonable conduct. His unreasonable conduct is *novus actus interveniens*. The chain of causation has been broken and what follows must be regarded as caused by his own conduct and not by [D's] fault or the disability caused by it.” (Lord Reid, [70])

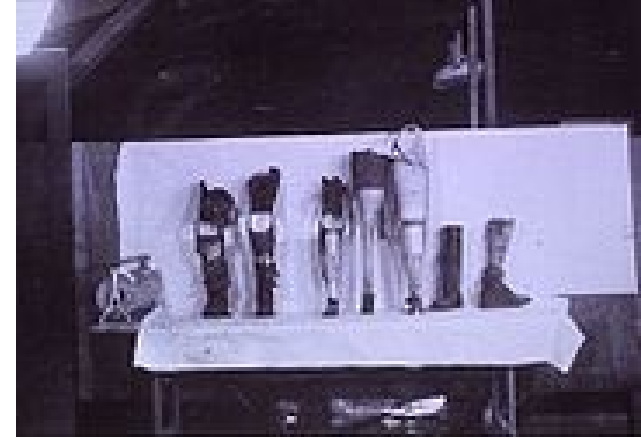
2(a): acts of C



McKew v Holland [1969] 3 ALL ER 1621

- ❑ Although C's act was reasonably foreseeable, it still broke the chain of causation.
- ❑ "I do not think that foreseeability comes into this. [D] is not liable for a consequence of a kind which is not foreseeable. But it does not follow that he is liable for every consequence which a reasonable man could foresee. ...[I]t is often easy to foresee unreasonable conduct or some other *novus actus interveniens* as being quite likely. But that does not mean that the defender must pay for damage caused by the *novus actus*." (Lord Reid, [70])
- ❑ N.b. Contrary to Hamblen LJ in *Clay v TUI*

2(a): acts of C



Spencer v Wincanton [2009] EWCA Civ 1404

- ❑ D negligently injured C's leg. C required prosthetic leg. C tried to fill up their car without using crutches or prosthetic leg and fell, suffering further injury.
- ❑ C's conduct was not wholly unreasonable as in *McKew*. No *novus actus*, but reduction of 1/3 for contributory negligence.

2(a): acts of C



Clay v TUI [2018] EWCA Civ 1177

Facts:

- ❑ C enjoying a package holiday with extended family
- ❑ C trapped on the balcony for 30 minutes as a result of being locked out of the hotel room because of D's negligence
- ❑ C tried to get from one balcony to another
- ❑ C fell and suffered a skull fracture

2(a): acts of C



Clay v TUI [2018] EWCA Civ 1177

Held:

- ☐ C was not in an emergency – no need for C to take on the risk of trying to cross balconies
- ☐ What C had done was not reasonably foreseeable
- ☐ D not liable

2(a): acts of C



Corr v IBC Vehicles [2008] 1 AC 884

- ❑ C's ear severed by D's negligence. C became depressed, and took his own life.
- ❑ "C's suicide was not a voluntary, informed decision taken by him as an adult of sound mind making and giving effect to a personal decision about his future. It was the response of a man suffering from a severely depressive illness which impaired his capacity to make reasoned and informed judgments about his future, such illness being, as is accepted, a consequence of the employer's tort." (Lord Bingham, [16])

2(a): acts of C

- ❑ N.b. suicide can be a *novus actus* if it is DIVU, rather than a foreseeable consequence of D's negligence
- ❑ "the police should not owe a person of sound mind a duty to take reasonable care to prevent him from committing suicide. If he wants to take his life, that is his business. He is a responsible human being and should accept the intended consequences of his acts without blaming anyone else."

(*Reeves v Commissioner of Police of the Metropolis* [2000] 1 AC 360, Lord Hoffmann, p.368)



2(b): acts of third party



Lamb v Camden LBC [1981] EWCA Civ 7

Facts:

- ☐ D's negligence caused building damage
- ☐ C moved all the furniture out
- ☐ Squatters moved in

Held:

- ☐ D not liable for damage caused by squatters – the squatting was a *novus actus*

2(b): acts of third party



Lamb v Camden LBC [1981] EWCA Civ 7

Denning LJ:

- ❑ Whether it was foreseeable that the squatters would move in is irrelevant. The issue is purely one of 'policy'.
- ❑ As a matter of policy, it was the job of C to keep the squatters out and evict them. D should not be liable.

Watkins LJ:

- ❑ Reasonable foreseeability should always be the starting point. Only once satisfied should the court consider policy issues.
- ❑ "We are here dealing with unreasonable conduct of an outrageous kind ... This kind of anti-social and criminal behaviour provides a glaring example of an act which is too remote."

2(b): acts of third party



Knightley v Johns [1982] 1 WLR 349

Facts:

- ❑ D1, a driver, caused an accident in a tunnel.
- ❑ D2, a police chief, ordered C to drive back through the tunnel against traffic, to seal it off.
- ❑ D3, another driver, hit and injured C.

2(b): acts of third party



Knightley v Johns [1982] 1 WLR 349

Held:

- ❑ What D2 did was not ordinary, but gross negligence. He violated police codes.
- ❑ So, despite the emergency context, D2's act broke the chain of causation. D2 liable, not D1.